

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 02/04/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-00701 CASE NAME: ABDESSALAM MANSORI VS. LAILA ELFAZOUZI *FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas' Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

2. 9:00 AM CASE NUMBER: C24-02905 CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON *HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES
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FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Aiden Keeton and Aaron Keeton (collectively, “Defendants” or “the Keetons”)’s motion to strike. The motion to strike relates to Plaintiff Joseph Simoni (“Plaintiff” or “Simoni”)’s prayer for punitive damages in his complaint for (1) Motor Vehicle, (2) General Negligence, and (3) Premises Liability.

Defendants move to strike Plaintiff’s prayer for punitive damages on the grounds that because Plaintiff failed to allege any facts in his complaint, he did not meet the stringent standard of oppression, fraud, or malice required to support a claim for punitive damages under California Code of Civil Procedure § 3294(a).

Plaintiff opposes Defendants’ motion to strike on the grounds that it is legally unsupported and improperly attempts to resolve factual issues at the pleading stage.

Defendant’s motion to strike is **granted**, with leave to amend

Factual Allegations and Background

Simoni filled out the PLD-PI-001 Complaint Form, approved for use by the Judicial Council of California, to initiate his lawsuit in this case on October 29, 2024. Though unclear in places, the thrust of the form is that he is suing father and son, Aaron and Aiden Keeton, and Does 1-100 for Motor Vehicle, General Negligence, and Premises Liability and is seeking compensatory and punitive damages.

Prompt No. 10 on the form includes the check boxes for the causes of action and says: “The following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*).” (PLD-PI-001 Complaint Form (emphasis added).) Simoni did not attach any causes of action. Nowhere on the form or on any attachment does Simoni allege any facts related to the complaint. He did, however, attach a traffic collision report prepared by the Concord Police Department.

The gravamen of the traffic collision report is that Simoni was struck on his motorcycle by Aiden Keeton (“Aiden”), who was driving an automobile with Aaron Keeton (“Aaron”) in the vehicle. (Collision Report at 1.) Simoni was thrown off his motorcycle and sustained a fractured pelvis, a dislocated left shoulder, a cracked left knee and a concussion. (*Id.* at 6, 8.)

Defendants sent Simoni three meet-and-confer letters and left a voicemail over the span of 13 business days in early-September, demanding that Simoni amend his complaint to allege sufficient facts to state a cause of action and to withdraw his prayer for punitive damages or Defendants would file a demurrer and motion to strike. (Khosravi Dec. ISO MTS ¶¶ 4-7, Ex. B, C, D.) Simoni did not reply. (*Ibid.*) The essential requirements of California Code of Civil Procedure § 430.41 were met.

Defendants filed the instant motion on September 24, 2025. They contend that Simoni’s prayer for punitive damages should be stricken because he failed to demonstrate that the defendants acted with oppression, fraud, or malice, and in fact failed to allege any facts at all. (MTS at 2:26-28; 3:1-3.)

Simoni, in his opposition to the Keetons' motion to strike, contends that he was lawfully operating his motorcycle when he was rear-ended by Defendants, whom he further contends were driving with a suspended or revoked driver's license. (Opp. to MTS. at 1:23-25.) Simoni goes on to argue that "Defendants knowingly chose to operate a motor vehicle despite legal prohibitions, demonstrating conscious disregard for the safety of others. Knowingly driving without a valid license is despicable conduct and supports punitive damages." (Opp. to MTS at 1:23-29.) Simoni does not provide citation to corresponding allegations in his complaint for these contentions.

Legal Standard

Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof..." (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 "(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading." (Code Civ. Proc., § 437.)

To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.) "A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of contract where the defendant has been guilty of oppression, fraud, or malice." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).)

As used in this section, the following definitions shall apply:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) "*There must be an intent to vex, annoy or injure. Mere spite or ill will is not sufficient; and mere negligence, even gross negligence is*

not sufficient to justify an award of punitive damages.” (Ebaugh v. Rabkin (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) Furthermore, the circumstances of oppression, fraud or malice must be alleged in the pleading to support such a claim. (Grieves, supra, 157 Cal.App.3d at 166.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Analysis

Plaintiff argues for the first time in his opposition to the instant motion that Defendants were driving with a suspended or revoked driver’s license. (Opp. to MTS. at 1:23-25.) However, arguments in opposition that are not supported by allegations in the challenged pleading are insufficient.

Circumstances of oppression, fraud, or malice must be alleged in the pleading to support a prayer for punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Here, the complaint alleges no facts – let alone facts showing oppression, fraud, or malice. Even if these allegations are true, driving without a valid license does not, by itself, establish the requisite intent for punitive damages, absent additional allegations of despicable conduct. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 90.)

Because Simoni’s opposition allegations are not pleaded in his complaint, they cannot support a prayer for punitive damages. The Court nonetheless views Simoni’s attempt to insert allegations into his opposition that are absent from his complaint as a demonstration that he may have additional facts to plead in an amended complaint such that the issues with his prayer for punitive damages cited herein may be cured.

Accordingly, Defendants’ motion to strike Plaintiff’s prayer for punitive damages is **granted, with leave to amend**.

3. 9:00 AM CASE NUMBER: C24-02905

CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Aiden Keeton and Aaron Keeton (collectively, “Defendants” or “the Keetons”)’s demurrer. The demurrer relates to Plaintiffs Joseph Simoni (“Plaintiff” or “Simoni”)’s complaint for (1) Motor Vehicle, (2) General Negligence, and (3) Premises Liability.

Defendants demur to Plaintiff’s entire complaint pursuant to California Code of Civil Procedure § 430.10(e) on the grounds that Plaintiff fails to state sufficient facts to constitute a cause of action.

Plaintiff opposes Defendants’ demurrer, arguing that he stated all elements of negligence.

For the following reasons, Defendants’ demurrer to Plaintiff’s complaint is **sustained with leave to amend**.